

Om Prakash Sahani v. State of U.P. & 4 Others

High Court of Judicature at Allahabad · Single Judge · 10 November 2021 (last order; matter pending) · Writ - C No. 8432 of 2018 · **No final adjudication in the record. Interim protection against coercive recovery was granted on 10.4.2018 and continued on later dates; on 10.11.2021, the petitioner's counsel being not ready to argue and repeatedly seeking adjournments, the case was listed after three months and the interim order was expressly not extended. The challenge to the 80-month demand founded on a slow meter (raised, it was contended, without following the Supply Code's defective-meter testing procedure) remained undecided.**

Source file: WRIC(A)_8432_2018.pdf

HEADNOTE

The petitioner challenged a demand raised by the electricity department for a period of 80 months on the basis of a slow meter, contending that the provision for testing a defective meter under the U.P. Electricity Supply Code, 2005 had not been followed and the demand was therefore not legally sustainable. The record is an order-sheet of successive interlocutory orders (6.3.2018 to 10.11.2021) containing no adjudication on the merits. The Court granted interim protection on 10.4.2018 restraining any coercive step against the petitioner pursuant to the demand and continued it on later dates; it also took up a disconnection said to have been effected during the currency of the interim order (the connection being later reported restored). On 10.11.2021, the petitioner's counsel not being ready to argue and repeatedly seeking adjournments, the Court listed the case after three months and made it clear that the interim order was not extended. No question of law was decided.

FACTUAL SUMMARY

The petitioner, Om Prakash Sahani, filed Writ - C No. 8432 of 2018 against the State of U.P. and the electricity department/licensee (respondents 4 and 5). He challenged a demand raised by the department for a period of 80 months computed on the basis of a slow meter, contending that the meter-testing procedure for a defective meter prescribed by the U.P. Electricity Supply Code, 2005 had not been followed, so that the demand was not legally sustainable; a question was also raised (order of 6.3.2018) whether the petitioner's deposit of Rs. 80,000 on 13.6.2016 and other deposits could be treated as compliance with Regulation 18.4 of the 2007 Regulations. The matter passed through several single-judge benches between 2018 and 2021 with repeated adjournments and extensions of time for the respondents' counter affidavit. Interim protection against coercive recovery was granted on 10.4.2018 and continued; during its currency the department disconnected the petitioner's connection, which the Court took up (the connection being later reported restored on 29.10.2021). On 10.11.2021, the petitioner's counsel being not ready to argue and seeking adjournments, the Court listed the case after three months and declined to extend the interim order. The record contains no final decision.

REUSABLE CONSTRUCTIONS

1. Interim protection restraining coercive recovery of a disputed slow/defective-meter demand may be granted pending adjudication, but is liable to be discontinued where the petitioner is not ready to argue and repeatedly seeks adjournments. **orders of 10.4.2018 and 10.11.2021**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

OBITER

Interim protection against coercive recovery of a slow/defective-meter demand pending adjudication of alleged non-compliance with the Code's meter-testing procedure; no decision on the merits

QUESTION

Pending adjudication of the contention that an 80-month demand founded on a slow meter was raised without following the U.P. Electricity Supply Code, 2005 procedure for testing a defective meter, should the petitioner have interim protection against coercive recovery, and was any question of law decided?

HOLDING

No question of law was decided. The Court did not adjudicate whether the meter-testing procedure under the Supply Code had been followed or whether the 80-month slow-meter demand was sustainable. It granted interim protection on

10.4.2018 restraining any coercive step against the petitioner pursuant to the demand, continued that protection on subsequent dates, and took up a disconnection effected during its currency (the connection being later reported restored). Ultimately, on 10.11.2021, the petitioner's counsel not being ready to argue and repeatedly seeking adjournments, the Court listed the matter after three months and expressly declined to extend the interim order. The merits therefore remain open. [orders of 10.4.2018 to 10.11.2021](#)

EVIDENCE “the provision for testing defective meter as provided by the U.P. Electricity Supply Code, 2005 has not been followed” [order of 10.4.2018](#) (petitioner's submission)

EVIDENCE “the demand raised by the electricity department for a period of 80 months on the basis of a slow meter is not legally sustainable” [order of 10.4.2018](#) (petitioner's submission)

EVIDENCE “no coercive step shall be taken against the petitioner pursuant to demand raised by the department for the concerned period” [order of 10.4.2018](#)

EVIDENCE “It is made clear that interim order, passed earlier, is not extended.” [order of 10.11.2021](#)

FLAG Order-sheet with no final adjudication; the matter was pending as of the last order (10.11.2021). Pins are to order dates; the clause number for the Code's defective-meter testing procedure is not stated in the source and is mapped to Clause 5.6 (Metering / Defective Meters).

PRINCIPLE TAGS

interim-protection-pending-meter-demand-challenge Pending a challenge that a slow/defective-meter demand was raised without following the Supply Code's meter-testing procedure, the Court may stay coercive recovery; such interim relief is not extended where the petitioner does not prosecute the matter. [orders of 10.4.2018 to 10.11.2021](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 80-MONTH DEMAND FOUNDED ON A SLOW METER IS LEGALLY SUSTAINABLE, AND WHETHER THE U.P. ELECTRICITY SUPPLY CODE, 2005 PROCEDURE FOR TESTING A DEFECTIVE METER WAS FOLLOWED.

Raised by the petitioner but left undecided; the record contains only interlocutory orders and the interim protection was ultimately not extended. [orders of 10.4.2018 to 10.11.2021](#)

NOT DECIDED — WHETHER THE PETITIONER'S DEPOSIT OF RS. 80,000 ON 13.6.2016 AND OTHER DEPOSITS CAN BE TREATED AS COMPLIANCE WITH REGULATION 18.4 OF THE 2007 REGULATIONS.

Flagged for the respondent's instructions in the order of 6.3.2018 but not adjudicated. [order of 6.3.2018](#)

RELATED CASES — SEE ALSO

SCJ-059 — M/s Modern Rice Mill v. MVVNL - Clause 5.6 governs the licensee's right and procedure to test a meter on reasonable doubt of accuracy; directly relevant to the meter-testing procedure the petitioner says was skipped.

SCJ-058 — M/s Krown Bakers v. PVVNL - the obligation to install a check meter or otherwise test a meter under Clause 5.6; sibling on the defective-meter testing procedure.

SCJ-153 — Mohd. Sagir v. DVVNL - a tampered/defective meter falls within Clause 5.6; companion authority on the defective-meter provision engaged by a slow-meter demand.